

Defendant's argument, explaining, "[s]ection 36, subdivision (a), says nothing about 'death or incapacity'...The issue under subdivision (a) is not whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called. Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's '*health ... is such that a preference is necessary to prevent prejudicing [her] interest in the litigation.*' (Italics added.) [Defendant's] proposed reading of subdivision (a), requiring a showing of what amounts to likely unavailability for trial, sets the prejudice standard too high." (*Fox, supra*, 21 Cal.App.5th at 496-497 [original emphasis].)

Given the above, Plaintiff has sufficiently established that her health makes trial setting preference necessary to prevent prejudicing her interest in the litigation. (C.C.P. § 36(a)(2).) Thus, the Court **GRANTS** Plaintiff's motion for trial preference setting and orders trial to be set not more than 120 days from the date of the Court's order.

Summary:

Grant the motion for trial preference. Trial is set for **10/30/2026** at 8:30 a.m. in Dept. 6.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2507137	MONROY VS FREDERICK EKO	MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET ONE

Tentative Ruling:

Moving party: Plaintiff Myra Monroy
Responding party: Defendant Fredrick Eko, M.D.

This is a medical malpractice action. Plaintiff Myra Monroy ("Plaintiff"), acting in pro per, alleges that Defendant Fredrick Eko, M.D. ("Defendant") performed an unnecessary medical procedure on her on 6/27/22, without obtaining proper informed consent or maintaining complete medical records. The operative First Amended Complaint, filed 2/2/26, asserts: (1) medical negligence, (2) lack of informed consent, (3) negligence, and (4) negligent infliction of emotional distress.

Now, Plaintiff moves to compel further responses from Defendant to her Request for Production (RFP), set one. Her motion did not identify any specific discovery requests or responses, did not include a separate statement, and did not attach a meet-and-confer declaration. Plaintiff argues in general that Defendant's responses are evasive, contain boilerplate objections, and that Defendant withheld key documents. Specifically, Plaintiff alleges that Defendant's "Exhibit A" failed to produce internal communications, photographs, policies and protocols, and incident reports. Plaintiff

generally asserts that good cause exists and that Defendant's produced records show inconsistencies. Plaintiff requests sanctions but did not specify an amount.

In opposition, Defendant argues that Plaintiff's motion is defective as it fails to attach a separate statement or show adequate meet and confer. Defendant argues that he produced more than 200 pages of medical records and photographs on 3/24/26, followed by supplemental verified responses and additional insurance and billing records on 4/3/26. Defendant asserts that Plaintiff relies entirely on speculation that additional records exist.

No reply is available on e-court for review.

Analysis

Separate Statement

As a preliminary matter, Plaintiff failed to file a separate statement in support of her motion. California Rule of Court, rule 3.1345 requires separate statements to accompany motions to compel further responses to a demand for inspection of documents or tangible things. (Cal. Rules of Court, rule 3.1345(a)(3).)

"The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include—for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested—the following: (1) The text of the request, interrogatory, question, or inspection demand; (2) The text of each response, answer, or objection, and any further responses or answers; (3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute; (4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it..." (Cal. Rules of Court, rule 3.1345(c).)

The Court has discretion to deny Plaintiff's motion to compel based on the failure to file a separate statement. (See *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893 [affirming the denial of a motion to compel for failing to comply with former rule 335, now rule 3.1345, where the separate statement did not set forth the full responses to the requests for production and the statement of factual and legal reasons for compelling further responses was combined in one section that did not indicate which of the specific discovery requests they related to].)

Here, Plaintiff failed to submit a separate statement, nor did she set forth the specific requests and responses within her motion. Her motion lists only some documents she believes are missing without providing any factual support or arguments as to each dispute. The court denies the motion as there is no meaningful way to review any individual discovery requests.

Meet and Confer

Code of Civil Procedure § 2031.310(b)(2) requires that a motion to compel further responses be accompanied by a meet-and-confer declaration under Code of Civil Procedure §2016.040. The declaration must state facts showing a reasonable and good faith effort *in person, by telephone, or by videoconference* to informally resolve the disputes. (Code Civ. Proc., §2016.040(a).) A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.)

Here, Plaintiff did not attach a meet-and-confer declaration to her moving papers. Plaintiff asserts only conclusory statements in her motion that she made a good faith effort to resolve the issues informally. Plaintiff did not describe any letters or phone calls to show that she identified the deficiencies to Defendant prior to filing. The court denies the motion.

Summary

Deny the motion due to the absence of a mandatory separate statement and a meet-and-confer declaration.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2302950	REAL ADVANTAGE TITLE INSURANCE VS BARKER	MOTION TO COMPEL DEFENDANT AND CROSS-COMPLAINANT MICHAEL BARKER'S COMPLIANCE WITH RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS

Tentative Ruling:

Moving party: Plaintiffs/Cross-Defendants Real Advantage Title Insurance Company and Orange Coast Title Company of Southern California

Responding party: Defendant/Cross-Complainant Janice Baker

This action arises out of Plaintiffs Real Advantage Title Insurance Company ("RATIC") and Orange Coast Title Company of Southern California ("OCTSC") (collectively "Plaintiffs") seeking indemnity from Defendant Janice Barker, Special Administrator of the Estate of Michael Barker, Deceased ("Barker") under a 2019 Indemnity Agreement, following Plaintiffs' \$10.5 million settlement of an underlying action by BOBS LLC.

Barker has filed an operative First Amended Cross-Complaint ("FACC") asserting causes of action for breach of contract, negligence, breach of fiduciary duty, and